

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION  
NO: 2:25-cv-11072-RMG**

|                               |   |                  |
|-------------------------------|---|------------------|
| MARGIE PEPPERS FORD,          | ) |                  |
|                               | ) |                  |
| Plaintiff,                    | ) |                  |
|                               | ) |                  |
| v.                            | ) |                  |
|                               | ) | <b>COMPLAINT</b> |
| THE UNITED STATES OF AMERICA, | ) |                  |
|                               | ) |                  |
| Defendant.                    | ) |                  |
| _____                         | ) |                  |

COMES NOW, Plaintiff, Margie Peppers Ford, by and through undersigned counsel, and for her cause of action against the Defendant states as follows:

**CASE SYNOPSIS**

1. This case arises out of a motor vehicle collision that occurred on August 23, 2023, in Summerville, South Carolina.
2. Ms. Peppers Ford was rear-ended by a USPS driver on or near South Main Street.
3. As a result of the collision Ms. Peppers Ford suffered injuries.

**FOR A CAUSE OF ACTION - NEGLIGENCE**  
(Negligence – Federal Tort Claims Act)

4. Plaintiff Margie Peppers Ford (hereinafter “Plaintiff”) is a resident of the State of South Carolina.
5. Plaintiff brings this action pursuant to 28 U.S.C. §2671, et seq., the Federal Tort Claims Act.
6. All administrative remedies have been timely filed, pursued, and exhausted pursuant to 28 U.S.C. §§ 2671-2680.

7. Venue is proper in that all the acts and omission forming the basis of Plaintiff's claims occurred in Dorchester County, South Carolina, which is encompassed by the Charleston Division of the District of South Carolina.
8. That the motor vehicle collision that is the subject of this action occurred in Dorchester County, South Carolina.
9. That this Court has jurisdiction over the parties and the subject matter of this action.
10. That upon information and belief, and at all times relevant to this action, Lisa Young, was an agent, servant, and employee of the United States of America; specifically, Lisa Young (hereinafter "USPS Driver") was a postal carrier/driver for the United States Postal Service (USPS).
11. At all times referenced herein, USPS Driver was acting within the course and scope of their employment with Defendant United States of America as a postal carrier/driver for the USPS.
12. That on August 23, 2023, the Plaintiff was lawfully stopped in the second lane of South Main Street in Summerville, South Carolina in a 2012 Mazda with VIN JM1CW2DL8C0140250 and South Carolina license plate TWK366.
13. That at or about the same time, USPS Driver, whilst driving for USPS, forcefully rear-ended Plaintiff on South Main Street while driving a 1991 Chevrolet with VIN 1GBCS10A6M2929940 and South Carolina license plate 1261128.
14. That at all times material hereto, USPS Driver had a duty to operate Defendant's vehicle in a safe and prudent manner and to avoid injuring other motorists, bicyclists, and/or pedestrians.

15. That the collision and the resulting injuries and damages to Plaintiff were caused directly and proximately by one or more of the following negligent, negligent *per se*, grossly negligent, careless, reckless, willful, wanton and unlawful acts, and/or omissions of USPS Driver in any one or more of the following respects:

- a. In failing to keep a proper lookout while operating the vehicle;
- b. In failing to maintain control of the vehicle;
- c. In failing to stay in Defendant Driver's lane of traffic;
- d. In failing to slow down to a controllable speed to stay in Defendant Driver's lane of traffic;
- e. In failing to keep a safe distance from Plaintiff;
- f. In failing to use due care;
- g. In failing to properly observe the road and traffic conditions;
- h. In failing to obey traffic laws and/or signs;
- i. In failing to use their horn, if USPS Driver had any;
- j. In traveling too fast for conditions;
- k. In failing to properly maintain the vehicle;
- l. In failing to yield the right of way;
- m. In failing to apply their brakes or use USPS Driver's steering mechanism to avoid the collision;
- n. In negligently and carelessly operating the vehicle in a high and excessive rate of speed under the circumstances then and there existing;
- o. In operating the vehicle at a high rate of speed and far in excess of the reasonable and prudent speed under the circumstances and conditions then and there existing;
- p. In operating the vehicle without using due care and without regard for safety and rights of Plaintiff;
- q. In operating the vehicle in a negligent, grossly negligent, careless, reckless, willful, wanton and unlawful manner so as to create a dangerous situation;
- r. In failing to exercise the degree of care and caution that a reasonable and prudent person would have exercised under the circumstances then and there prevailing;
- s. In negligently and carelessly operating the vehicle in such a manner to cause the

vehicle to strike Plaintiff and cause personal injuries; and,

t. In any other manner ascertained through the course of discovery.

16. That as a direct and proximate result of the negligence, carelessness, recklessness, willfulness and wantonness of the Defendant, as is set forth more fully above, Plaintiff was injured, has endured pain and suffering, has suffered mentally and emotionally, and has incurred, and will incur, various medical expenses, and has otherwise been damaged and injured.

17. That as a direct and proximate result of the negligence, gross negligence, carelessness, recklessness, willfulness and wantonness of the Defendant's agent, USPS Driver, as is set forth more fully above, Plaintiff has been damaged and injured in the following respects:

- a. Plaintiff has been required to expend a significant amount of money for her medical care, treatment, and attendant services;
- b. Upon information and belief, the nature of Plaintiff's injuries will require Plaintiff to expend a significant amount of money for medical care, treatment, and attendant services in the future;
- c. The pain of Plaintiff's injuries has resulted in loss of enjoyment of life, has caused changes in Plaintiff's personality, and has been detrimental to her general health and physical well-being; and
- d. Upon information and belief, Plaintiff was required to expend money to replace and repair property damage caused in the collision.

18. That Defendant's acts and omissions, through its agent USPS Driver as set forth more fully above, are the direct and proximate cause of Plaintiff's damages.

**WHEREFORE**, Plaintiff prays for judgement against Defendant in an amount that is fair and reasonable, in excess of the jurisdictional limits, for all damages, for the cost and disbursements of this action, and for such other and further relief, in law or in equity, as this Court may deem just and proper.

Dated: August 15, 2025

Respectfully Submitted,

/s/ Chase H. Coble

Chase H. Coble, Fed. ID No. 14188

Poulin | Willey | Anastopoulo, LLC

32 Ann Street

Charleston, SC 29403

Telephone: (803) 222-2222

Email: [teamcoble@poulinwilley.com](mailto:teamcoble@poulinwilley.com)

**ATTORNEYS FOR THE PLAINTIFF**